



**Subject: Formal complaint of disability discrimination under the DDA (Art. 8, 2 & 19, 2). Objet :
Plainte formelle pour discrimination fondée sur le handicap (LHand, art. 8, 2 & 19, 2).**

1 message

P.J. Thompson <peterjamesthompson101@gmail.com> Fri, 29 May 2026 at 11:42 pm
To: support-pbv@gs-edi.admin.ch

To: ebgb@gs-edi.admin.ch
Cc: support-pbv@gs-edi.admin.ch
Subject: Formal complaint of disability discrimination under the DDA (Art. 8, 2 & 19, 2)

English Version

Eidgenössisches Büro für die Gleichstellung von Menschen mit Behinderungen EBGB
Inselgasse 1
3003 Bern
Switzerland

To the Federal Bureau for the Equality of Persons with Disabilities,

I am writing to formally request guidance and support under the Federal Act on the Elimination of Discrimination against People with Disabilities (Disability Discrimination Act, DDA; SR 151.3).

My name is Peter Thompson, an independent researcher. I have a severe physical disability, specifically aggressive Dupuytren's contracture affecting both hands, which is progressive and currently advanced. This condition severely restricts my ability to write, type, or use a keyboard. Documentation from my medical providers is available upon request.

Because of this disability, I rely on AI language software as an assistive writing aid. I dictate my ideas, and the software helps me structure and articulate them. This is a reasonable accommodation that allows me to communicate and work independently, much like a person with a visual impairment might use a screen reader.

In April 2026, my account on the research repository Zenodo (CERN) was suspended. I was told my work was "substantially AI-generated without a verifiable research basis." However, my use of AI is solely for accessibility, not to generate content. My work is original, my theories are derived from over 30 years of research, and I hold copyright over all my publications. My suspension notice is attached.

Legal Grounds of the Complaint

I believe the suspension violates the Disability Discrimination Act (DDA) for two specific reasons:

1. Article 8 of the DDA, which covers "Discrimination in the Provision of Services," states that any person who suffers discrimination by a state authority may request that authority to cease the discrimination. Zenodo is a repository that receives substantial public funding and is operated by CERN. As such, its platform constitutes the "provision of a service" under the DDA. By banning my account for a practice that is a reasonable accommodation for my disability, I have been denied access to this service. This is a violation of the equal rights guaranteed by the law.
2. The DDA defines discrimination as the "disadvantage of a person with a disability in comparison to a person without a disability," which is not "objectively justified" (Art. 2, Par. 4). The suspension penalises me for a necessary assistive tool (AI) that a person without a disability would not need. I would not have needed to use this AI writing aid if I did not have my severe hand disability. Therefore, the action discriminates against me based on my disability.

This Bureau was established by Article 19 of the DDA as the Swiss Confederation's specialist service to end discrimination against people with disabilities. You are responsible for providing information, coordinating, and reporting on these issues. Therefore, I am turning to you.

My Request

- I request that the EBGB formally investigate whether Zenodo/CERN's blanket ban on "AI-generated" content, as applied to a person with a severe physical disability who uses AI as an assistive writing tool, constitutes discrimination under Swiss law.
- I request advice on the next legal steps to have my account reinstated or, at the very least, to be allowed to retrieve my original research data.
- I ask the EBGB to contact Zenodo/CERN to urge them to make a "reasonable accommodation" for my disability, specifically to reinstate my access under the same conditions as any other user.

I am a physicist. I am a survivor. And I am asking for the equal rights that Swiss law and the United Nations CRPD guarantee to people with disabilities.

Thank you for your attention to this urgent matter.

Respectfully,

Peter James Thompson

Email: peterjamesthompson101@gmail.com

ORCID: 0009-0005-8688-7507

Attachments:

· Suspension notice from Zenodo (Screenshot)

10:56

5G 94



Notice of account suspension on Zenodo [Ticket#3323517]



Inbox



Zenodo Su... 10:55 pm

to me ▾



Dear user,

Your account has been banned for uploading content that is not permitted on Zenodo. After review, we found your submissions to be substantially AI-generated without a verifiable research basis. You can review [what content is not suitable for Zenodo](#), our [Terms of Use](#), and [General Policies](#).

This decision is final. These decisions are handled exclusively by the Zenodo team based on the policies linked above, and contacting other Zenodo or CERN channels will not result in a different outcome.

Best regards,
Zenodo Support
<https://zenodo.org>

Support Zenodo — Could we suggest you support Zenodo's features' development by donating to the CERN & Society Foundation? For more information see <https://zenodo.org/donate> or reach out directly to our Partnerships & Fundraising colleagues (donorcare@csf.cern.ch) if you have any doubts about

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Bureau fédéral de l'égalité pour les personnes handicapées BFEH
Inselgasse 1
3003 Berne
Suisse

Mesdames, Messieurs les membres du Bureau,

Je me permets de vous écrire pour solliciter votre soutien au titre de la Loi fédérale sur l'élimination des inégalités frappant les personnes handicapées (LHand, RS 151.3).

Je suis chercheur indépendant. Je souffre d'une maladie grave et évolutive des mains, la maladie de Dupuytren (forme agressive touchant les deux mains). Cette pathologie m'empêche pratiquement d'écrire ou de taper au clavier.

En raison de ce handicap, j'utilise un logiciel d'intelligence artificielle comme aide technique à l'écriture. L'IA ne crée pas mon travail ; elle m'aide à mettre en forme ce que je dicte, exactement comme un logiciel de synthèse vocale aide une personne malvoyante. Mon travail est original, fondé sur plus de 30 ans de recherche et protégé par le droit d'auteur.

En avril 2026, mon compte sur la plateforme de publication Zenodo (CERN) a été suspendu au motif que mes publications étaient « substantiellement générées par une IA ». Cette décision ne tient pas compte de la nature accommodante de mon utilisation de l'IA. La suspension revient à me priver d'un service public essentiel pour un motif lié directement à mon handicap.

Fondements juridiques de la plainte

1. Art. 8 LHand (Services) : Zenodo/CERN propose un service public. En me refusant l'accès à ce service pour l'utilisation d'un outil qui n'est qu'un aménagement raisonnable de mon handicap, je subis une inégalité de traitement interdite par la loi.
2. Art. 2, al. 4 LHand (Définition de la discrimination) : La discrimination inclut tout désavantage imposé à une personne handicapée par rapport à une personne non handicapée, sans justification objective. La suspension sanctionne l'utilisation d'un outil (l'IA) qu'une personne non handicapée n'aurait pas besoin d'utiliser. Cette sanction crée donc un désavantage direct fondé sur le handicap.

Mes demandes

1. Que le BFEH examine si l'interdiction générale de l'IA par Zenodo/CERN, appliquée à une personne handicapée qui utilise l'IA comme aide technique, constitue une discrimination.
2. Que vous me conseilliez sur les recours possibles pour obtenir la réintégration de mon compte.
3. Que vous entriez en contact avec Zenodo/CERN pour obtenir un « aménagement raisonnable » : la réouverture de mon compte dans les mêmes conditions que les autres utilisateurs.

Vous remerciant par avance de votre attention, je vous prie d'agréer, Mesdames, Messieurs, l'expression de mes salutations distinguées.

Peter James Thompson